



Administration of Estates Act (Northern Ireland) 1955

CHAPTER 24

ADMINISTRATION OF ESTATES ACT (NORTHERN IRELAND) 1955

PART I

ASSIMILATION OF REAL AND PERSONAL ESTATE FOR PURPOSES OF DEVOLUTION ON DEATH AND OF DESCENT ON INTESTACY

- 1 Realty to devolve and descend as personalty.
- 2 Further assimilation of law respecting real and personal estates of deceased persons.
- 3 Vesting of estate before grant of administration.
- 4 Abolition of term “real representative” and construction of references to estates of deceased persons.
- 5 Construction of references to heirs.

PART II

DISTRIBUTION ON INTESTACY

- 6 Rules for the distribution on intestacy.
- 6A Spouse or civil partner dying within 28 days of intestate.
- 7 Rights of surviving spouse or civil partner.
- 8 Rights of issue.
- 9 Rights of parents.
- 10 Rights of brothers and sisters and their issue.
- 11 Rights of next-of-kin.
- 12 Ascertainment of next-of-kin.
- 13 Saving for children begotten but not born.

- 14 Half-blood.
- 15 Operation of provisions for distribution or taking per stirpes.
- 16 Rights of the Crown.
S. 17 rep. by 1996 NI 26
- 18 Partial intestacy.
- 19 Construction of documents.
Part III (ss. 20-28) rep. by 1971 c. 25; 1971...

PART IV

ADMINISTRATION OF ASSETS

- 29 Real and personal estate of deceased are assets for payment of debts.
- 30 Administration of assets.
- 31 Charges on property of deceased to be paid primarily out of the property charged.
- 32 Powers of personal representatives to sell or transfer.
- 33 Protection of bona fide purchasers.
- 34 General provisions as to assent or transfer by personal representatives.
- 35 Special provisions as to unregistered land.
S. 36 rep. with savings by 1970 c. 18 (NI)...
- 37 Powers of personal representative as to appropriation.
- 38 Power to appoint trustees of infant's property.
- 39 Right to follow property in hands of beneficiary.
- 40 Powers to deal with estate, etc.
- 41 Time allowed for distribution.

PART V

MISCELLANEOUS AND GENERAL

- 42 Prescribed forms for reference in wills.
- 43 Provisions as to jurisdiction.
- 44 Meaning of "real estate", etc.
- 45 Interpretation.
S. 46(a), with Second Schedule, effects amendments; para. (b), with...
- 47 Savings.
- 48 Commencement.
- 49 Short title.

SCHEDULES

FIRST SCHEDULE — Section 30. Part I rep. by 1989 NI 19 PART II ORDER OF APPLICATION OF...

— PART I REP. BY 1989 NI 19

PART II — ORDER OF APPLICATION OF ASSETS WHERE THE ESTATE IS SOLVENT

- 1 Property of the deceased person undisposed of by will, subject to the retention thereof...
- 2 Property of the deceased person not specifically devised or bequeathed but included (either by a...
- 3 Property of the deceased person specifically appropriated or devised or bequeathed (either by a specific...

- 4 Property of the deceased person charged with, or devised or bequeathed (either by a specific...
- 5 The fund, if any, retained to meet pecuniary legacies.
- 6 Property specifically devised or bequeathed, rateably according to value.
- 7 Property appointed by will under a general power, rateably according to value.
- 8 The following provisions shall also apply— (a) The order of application may be varied by...

— Second Schedule—Amendments

— Third Schedule rep. by SLR 1973

Changes to legislation:

There are currently no known outstanding effects for the Administration of Estates Act (Northern Ireland) 1955.